

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

AIRBOSS DEFENSE GROUP, LLC, *Complainant*

v.

FEDEx TRADE NETWORKS TRANSPORT & BROKERAGE, INC.;
MEDITERRANEAN SHIPPING COMPANY S.A. AND
MEDITERRANEAN SHIPPING COMPANY (USA) INC., AS
AGENT FOR MEDITERRANEAN SHIPPING COMPANY S.A.; AND
TOTAL TERMINALS INTERNATIONAL, LLC, *Respondents*.

DOCKET NO. 24-14

Served: December 20, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER STAYING PROCEEDING

On December 17, 2024, Complainant Airboss Defense Group, LLC (“Airboss”), and Respondents FedEx Trade Networks Transport & Brokerage, Inc. (“FedEx”), and Mediterranean Shipping Company S.A. and Mediterranean Shipping Company (USA) Inc., as Agent for Mediterranean Shipping Company S.A. (collectively, “MSC”), filed a Joint Status Report (“JSR”), pursuant to the December 12, 2024 Order to File Joint Status Report. The parties were ordered to jointly report on the status of a U.S. District Court settlement conference and mediation that was conducted on December 17, 2024, by a Magistrate Judge. The results of the conference and mediation could impact pending motions in the case *sub judice*.

The parties state that “[A]lthough the mediation did not result in resolution of the claims at issue, there was meaningful progress toward a potential resolution.” JSR at 1. As a result of the progress made, “Judge Aslan has proposed convening a second mediation session to attempt to reach a resolution.” *Id.* While the date for the second session is not yet set, two proposed dates are in January, one a little over three weeks and the other about five weeks, from the date of this Order. The parties jointly request a stay “to allow time for the second mediation to occur...” *Id.* At 2. They further propose filing a joint status report when they know the date of the second mediation and a follow up report with the results of the session. *Id.* Two other proposed dates are not until February 2025.

Mediation does not typically stay a proceeding, but here, there are multiple district court lawsuits arising from the same shipments that are at issue in this case, as well as several pending dispositive motions in the instant case, and the parties are actively working toward a potential resolution of the issues between them. Accordingly, a short stay of this proceeding is appropriate. To encourage the parties to continue their mediation and settlement discussions, it is **ORDERED** that this proceeding is stayed until February 28, 2025.

It is **FURTHER ORDERED** that the parties submit a joint status report on January 10, 2025, or earlier, informing the undersigned of the date agreed upon for the second mediation session, and a follow up joint status report within two business days after that session. Should any further action on a stay be required, the parties must file a motion stating good cause to extend the stay. *See* Initial Order at 4 (“Any request for action by the Commission or presiding officer must be made by motion, not by letter or email request or as part of a joint status report. Each page of the motion should be sequentially numbered.”).

The parties are also reminded that if a settlement agreement is reached, it must be submitted to the undersigned with a motion for approval.

Linda S Harris Crovella
Linda S. Harris Crovella
Administrative Law Judge